

(17) Cabs and hackney carriages not hired and being in a street elsewhere than on a cab rank.

(18) For restricting the use of vehicles and animals, and of sandwichmen and other persons, in streets for the purposes of advertisement of such a nature or in such a manner as to be likely to be a source of danger or to cause obstruction to traffic.

(19) The lighting and guarding of street works.

(20) The erection or placing or the removal of any works or objects likely to hinder the free circulation of traffic in any street, or likely to occasion danger to passengers or vehicles.

(21) Queues of persons waiting in streets.

(22) Priority of entry to public vehicles.

(23) For enabling any police, local or other public authority, in the event of any person failing to do anything which under the regulations he ought to have done, to do such act, and to recover the expenses thereof from the person so in default summarily as a civil debt.

CHAPTER 35.

An Act to amend the financial provisions of the Housing, &c. Act, 1923, and for other purposes incidental thereto or connected therewith.

[7th August 1924.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Extension
of 13 & 14
Geo. 5. c. 24.
to houses
completed
before 1st
October
1939.

1.—(1) Subject to the provisions of this Act, sections one and three of the Housing, &c. Act, 1923 (which relate to contributions by the Minister of Health to the expenses of local authorities in assisting the construction of houses and to the expenses of public utility societies and other bodies in building houses), shall extend to houses which are provided in pursuance of proposals approved by the Minister and are completed before the first day of October, nineteen hundred and thirty-nine, and so much of that Act as limits the operation of those sections to houses completed before

the first day of October, nineteen hundred and twenty-five, or the first day of June, nineteen hundred and twenty-six, shall cease to have effect.

(2) The following paragraph shall be substituted for paragraph (b) of subsection (1) of section one of the Housing, &c. Act, 1923:—

“(b) towards any expenses incurred by the local authority in the provision of such houses by the local authority themselves.”

Where a local authority purchase any such houses as are referred to in the said paragraph for the purposes of Part III. of the Housing of the Working Classes Act, 1890, the houses shall not be treated as houses provided by the local authority themselves within the meaning of the said Act of 1923 or this Act if the houses are houses which have been completed before the passing of this Act or have been occupied prior to the purchase.

53 & 54 Vict.
c. 70.

2.—(1) Where, in pursuance of proposals approved by the Minister after the passing of this Act, any houses are provided by a local authority themselves or by a society, body of trustees or company within the meaning of section three of the said Act, or expenses are incurred by a local authority in promoting the construction of any houses in accordance with section two of the said Act as amended by this Act, then, if the houses are subject to special conditions as hereinafter provided in this Act, the contribution which the Minister may make or undertake to make in respect of each such house, instead of being a contribution of six pounds payable annually for a period of twenty years—

Increased
Government
contri-
butions in
case of
houses
which are
subject to
special
conditions.

(a) shall be a contribution of nine pounds or, if the house is situated in an agricultural parish, twelve pounds ten shillings; and

(b) shall be payable annually for a period of forty years;

and the said Act shall have effect accordingly.

Provided that, where the contributions are made towards expenses incurred by a local authority in promoting the construction of houses in accordance with section two of the said Act as amended by this Act, the

said Act in its application to any of those houses shall have effect with the following modifications, namely :—

- (i) In the provision in subsection (1) of section one which requires that a contribution shall be reduced in certain contingencies, nine pounds, or in the case of a house situated in an agricultural parish twelve pounds ten shillings, shall be substituted for six pounds, and forty years shall be substituted for twenty years:
- (ii) Paragraph (a) of subsection (3) of section two shall not apply, and the following paragraph shall be substituted for paragraph (b) of the said subsection:

“(b) Undertake to pay such annual sum as may be specified in the proposals for a period not exceeding forty years to the person for the time being in receipt of the rent payable by a tenant to whom the house is let, or, in the case of a house not so let, to the person by whom the rates on the house are payable.”

Provided also that in any case where proposals are submitted to the Minister which, in consequence of the adoption of new materials or new methods of construction, involve a reduction in the estimated annual expenses to be incurred in connection with each house substantially greater than the equivalent of four pounds ten shillings per annum for forty years, the Minister may reduce the contribution by such amount as he shall think just and reasonable, but so nevertheless that the contribution shall not be reduced to such an extent as to leave any part of such estimated annual expenses to be borne by the local rate or by the said society, body of trustees, or company, as the case may be.

(2) For the purposes of this Act, a house shall be deemed to be situated in an agricultural parish if at the beginning of the financial year in which the proposal for the provision of the house is approved by the Minister—

- (a) the net annual value of the agricultural land in the parish in which the house is situated, as shown in the county rate basis then in force, exceeds twenty-five per cent. of the total net annual value of that parish as shown in the

same basis (the value of all property in the occupation of the Crown being taken into account); and

- (b) the population of the parish according to the last published census return of the Registrar-General, is less than fifty persons per hundred acres.

Any question as to whether a parish is or is not an agricultural parish within the meaning of this subsection shall be determined by the Minister, whose decision shall be final.

(3) In the case of any houses situated in an agricultural parish which are provided by a county council or any such board or body as is mentioned in subsection (3) of section eight of the Housing, Town Planning, &c. Act, 1919, for persons in their employment or paid by them or by a statutory committee, this section shall apply in like manner as it applies in the case of houses not situated in an agricultural parish.

9 & 10 Geo.
5. c. 35.

(4) Houses provided in pursuance of proposals approved by the Minister before the passing of this Act, if the contract for the construction of the houses was entered into or, in the case of houses constructed otherwise than under contract, the construction was begun after the first day of February, nineteen hundred and twenty-four, may, for the purposes of this section, if the Minister so directs, be treated as if the approval had been given after the passing of this Act, notwithstanding that the houses do not comply in every respect with the conditions imposed by or under this Act.

(5) Where, in pursuance of proposals approved by the Minister under this Act, houses are provided by the common council of the city of London or by a metropolitan borough council, the London County Council may, in respect of any such house which is subject to special conditions, supplement any contribution made by the Minister in respect of such house to an extent not exceeding two pounds five shillings, payable annually for a period not exceeding forty years, and for the purposes of paragraph (e) of subsection (1) of section three of this Act the amount of any such supplemental contribution shall be treated as if it were part of the expenses borne by the local rate in the city or borough.

Special con-
ditions.

3.—(1) Houses provided by a local authority themselves shall be deemed to be subject to special conditions if the local authority undertake, in accordance with rules made by the Minister and approved by the Treasury, that the following conditions will be complied with in relation to the houses :—

- (a) that, subject to the following conditions, the houses shall be let by the local authority for occupation to tenants who intend to reside therein :
- (b) that it shall be a term of every such letting that the tenant shall not assign, sublet, or otherwise part with the possession of the house, or any part thereof, except with the consent in writing of the local authority or some person authorised by them in that behalf, and that such consent shall not be given unless it is shown that no payment other than rent has been or is to be received by the tenant in consideration of the assignment, subletting, or other transaction ;
- (c) that if the local authority desire to sell or (save by such lettings as aforesaid) otherwise dispose of the houses the sale or disposal shall not be effected except upon and subject to such stipulations, if any, as the Minister thinks proper, for the reduction of the amount or the curtailment of the duration of any contribution payable by the Minister in respect of the house, or for both reduction and curtailment, but so nevertheless that the contribution in respect of any house sold before the expiration of a period of twenty years from the date when that contribution first became payable shall not be reduced by more than three pounds or, in the case of a house in an agricultural parish, by more than six pounds ten shillings, and the duration thereof shall not be curtailed by more than twenty years ;
- (d) that a fair wages clause which complies with the requirements of any resolution of the House of Commons applicable to contracts of Government departments and for the time being in force shall be inserted in all contracts for the construction of the houses ;

- (e) that the rents charged in respect of the houses shall not in the aggregate exceed the total amount of the rents that would be payable if the houses were let at the appropriate normal rents charged in respect of working-class houses erected prior to the third day of August, nineteen hundred and fourteen, except where the estimated annual expenses to be incurred in connection with the houses exceed, so far as the same are borne by the local rate, an amount equivalent to four pounds ten shillings a year payable for a period of forty years for each house and then only to the extent of such excess; and that no fine, premium or other like sum shall be taken in addition to the rent; and
- (f) that reasonable preference shall be given to large families in letting the houses.

(2) Houses provided by a society, body of trustees or company within the meaning of section three of the Housing, &c. Act, 1923, and houses, the construction of which is promoted by a local authority in accordance with section two of the said Act, as amended by this Act, shall be deemed to be subject to special conditions if the society, body of trustees or company, in the case of the houses provided by them, and the local authority in the case of the other houses undertake, in accordance with rules made by the Minister and approved by the Treasury, that the following conditions will be complied with in relation to the houses:—

13 & 14 Geo.
5. c. 24.

- (a) that the houses shall be let for occupation to tenants who intend to reside therein;
- (b) that it shall be a term of every such letting that the tenant shall not assign, sub-let, or otherwise part with the possession of the house, or any part thereof, except with the consent in writing of the society, body of trustees, or company in the case of the houses provided by them, or of the local authority or some person authorised by them in that behalf in the case of the other houses, and that such consent shall not be given unless it is shown that no payment other than rent has been or is to be received by the tenant in consideration of the assignment, sub-letting, or other transaction;

- (c) that no house shall be sold or (save by such lettings as aforesaid) otherwise disposed of except with the consent of the Minister, which may be absolute or subject to such reasonable stipulations as the Minister thinks proper, including, if the Minister thinks fit, stipulations for the reduction of the amount or the curtailment of the duration of any contribution payable by the Minister in respect of the house, or for both reduction and curtailment, but so nevertheless that the contribution in respect of any house sold before the expiration of a period of twenty years from the date when that contribution first became payable shall not be reduced by more than three pounds, or in the case of a house in an agricultural parish by more than six pounds ten shillings, and the duration thereof shall not be curtailed by more than twenty years;
- (d) that a fair wage clause which complies with the requirements of any resolution of the House of Commons applicable to contracts of Government departments and for the time being in force shall be inserted in all contracts for the construction of houses; and
- (e) that the rent charged in respect of any house shall not exceed the appropriate normal rent together with a sum equivalent to the average excess, if any, above the appropriate normal rent which can be charged by the local authority in accordance with this section in the case of houses provided by the local authority themselves, and that no fine, premium or other like sum shall be taken in addition to the rent.

(3) For the purposes of this section, the appropriate normal rent shall be deemed to be such rent, exclusive of rates, as the local authority determine, in accordance with rules made by the Minister, to be the rent that is normally charged in the area of the local authority in the case of working-class houses erected prior to the third day of August, nineteen hundred and fourteen: Provided that different rents may be so determined to be the appropriate normal rents as respects different

classes of houses and as respects different parts of the area.

Every rule made under this section shall be laid before both Houses of Parliament forthwith; and, if an address is presented to His Majesty by either House of Parliament within the next subsequent twenty-eight days on which that House has sat after any such rule is laid praying that the rule may be annulled, it shall thenceforth be void, but without prejudice to the validity of anything previously done thereunder or the making of a new rule.

(4) If at any time it is shown to the satisfaction of the Minister that any undertaking given under this section, or that any of the special conditions to which a house is subject under this section has not been complied with, any contribution payable in respect of the house may be discontinued or the amount thereof may be reduced, and the duration thereof may be curtailed, according as the Minister thinks proper.

4.—(1) Subject as hereinafter provided, the Minister and the Scottish Board of Health may jointly make an order under this section declaring that no contributions shall be made by the Minister or Board in respect of any houses which have not been completed before the date specified in the order.

Termination
of Govern-
ment lia-
bility to
make con-
tributions.

(2) The Minister and Board may make an order under this section in either of the following cases—

(a) if, in the year nineteen hundred and twenty-seven, or in any third succeeding year, the Minister and Board are satisfied that the total number of houses which have been completed in the two years last preceding and in respect of which contributions are payable, is less than two-thirds of the number set opposite to those two years in the First Schedule to this Act, whether the deficiency is due to the absence of adequate arrangements for the necessary increase in the supply of labour (including any necessary augmentation of the number of apprentices employed) or for the necessary increase in the supply of materials at reasonable prices, or for the obtaining of funds at reasonable rates of interest to finance the

provision of houses, or arises from any other cause whatsoever;

- (b) if, on a report made after due inquiry by a body of independent persons appointed by them, the Minister and Board are satisfied that the cost of erecting houses in respect of which contributions are payable has become unreasonable, regard being had to all the circumstances of the case and in particular to the question whether and how far any increase in the cost or any excessive charges are attributable to causes within the control of persons engaged whether as employers or workers in the building industry or in the manufacture or supply of building materials.

(3) When any such order has been made the Minister or Board shall not be liable to make or to undertake to make any contributions in respect of houses which have not been completed before the date specified in the order, other than a house which is completed not later than eight months after the specified date in respect of which the Minister or Board is satisfied that the failure to complete the house before the specified date was due to circumstances over which the local authority, person, or body constructing the house had no control.

Revision of
contribu-
tions.

5. In the year nineteen hundred and twenty-six, after the first day of October in that year and in each second succeeding year, after the first day of October in such year, the Minister and the Scottish Board of Health shall take into consideration the expenses which are likely to be incurred in the period of two years from such first day of October in connection with the provision of houses in respect of which contributions would be payable by the Minister or Board, due regard being had to the expenses actually incurred during the period of two years ending on that day for the like purposes, and after consultation with such associations of local authorities as appear to them to be concerned, and with any local authority with whom consultation appears to them to be desirable, may, if they think it expedient so to do, jointly make an order altering the amount of the contributions payable or the period for which such contributions are to be payable, so far as respects houses which have not been completed before the

date specified in the order, but so, nevertheless, that the amounts and periods fixed by the order shall be such as may be approved by the Treasury and shall not exceed the respective amounts and periods fixed by the Housing, &c. Act, 1923, or (in the case of houses subject to special conditions) by this Act, unless Parliament otherwise determines.

An order under this section shall make such consequential alterations of any sums or periods mentioned in the financial provisions of the said Act or in this Act, including the sum of four pounds ten shillings mentioned in subsection (1) of section three of this Act, as appear to the Minister and Board to be necessary for the purpose of adjusting the same to any alteration made by the order in the amount or duration of the contributions, and that Act and this Act shall have effect accordingly.

6. Before any order is made by the Minister and the Scottish Board of Health under this Act, a draft of the proposed order shall be laid before the Commons House of Parliament, and the order shall not be made unless and until a resolution is passed by that House approving of the draft.

Laying of
orders
before
Parliament.

7. It shall be the duty of a local authority on submitting proposals for the provision of houses for the purposes of this Act to satisfy the Minister—

Conditions
as to town
planning
schemes and
density.

- (a) that they have taken into account the requirements of any town planning scheme likely to be made in respect of or in the neighbourhood of the area in which the houses are to be provided; and
- (b) that the rate of density of the houses, ascertained in such manner as the Minister may determine, will not, except with the consent of the Minister, exceed eight per acre in an agricultural parish and twelve per acre elsewhere.

8. Where the Minister approves the proposals of a local authority in relation to the provision of houses in the area of another local authority, and any difference arises between those authorities with respect to the carrying out of the proposals such difference may be referred by either authority to the Minister whose

Adjustment
of difficul-
ties between
local
authorities.

decision shall be final and binding on the respective authorities.

Extension of provisions of 13 & 14 Geo. 5. c. 24. s. 3, where local authority fails to take action.

9. In any case where the Minister certifies that a local authority has failed to take the necessary steps for promoting the construction of houses under the Housing, &c. Act, 1923, or this Act, the provisions of section three of the said Act of 1923 shall apply to persons willing to undertake or who have undertaken the construction of houses in the area of the local authority in like manner as they apply to the societies, bodies of trustees, and companies therein mentioned, and the provisions of this Act relative to such societies, bodies, and companies shall extend to those persons.

Materials and methods of construction.

10.—(1) In approving proposals for the construction of houses under this Act the Minister shall not impose any condition which would prevent the materials required being purchased in the cheapest market at home or abroad or which would require the employment of any particular trade.

(2) If at any time it is shown to the satisfaction of the Minister that a local authority have, without reasonable cause, refused to adopt a new material or method of construction which in his opinion would reduce the cost of the house without unduly affecting its durability, suitability or appearance, the Minister shall require the adoption of the said new material or method of construction to be reconsidered for that purpose by the local authority, and, in the event of their failure without reasonable cause to adopt the same, shall make such deduction from the amount of the contribution payable by him as in his opinion is reasonable having regard to the amount of the unnecessary expenditure so incurred by the local authority, but, for the purpose of paragraph (e) of subsection (1) of section three of this Act, the expenses of the local authority shall be calculated as if no such deduction had been made.

Suspension of building operations.

11. A local authority in carrying out any proposals approved by the Minister for the purposes of this Act shall have power to determine the number of houses which they will build in any particular period subject to the imposition of a maximum limit by the Minister, and should the local authority find it necessary to suspend

building operations on the ground of excessive cost, or on any other reasonable ground, the suspension shall not be treated as a failure on the part of the local authority to fulfil their obligations as to the preparation of schemes under the Housing Acts or their obligations under any such schemes.

12.—(1) The powers conferred upon local authorities by section five of the Housing, &c. Act, 1923, may be exercised by a county council, and any expenses incurred by a county council thereunder shall be defrayed as expenses for general county purposes. Powers of county councils.

(2) The provisions of section eight of the Housing, Town Planning, &c. Act, 1919, so far as they relate to the borrowing of money by a county council, shall apply in the case of any money borrowed by a county council for any of the purposes aforesaid.

(3) Money borrowed by a county council under any powers conferred on them by the Housing Acts, 1890 to 1923, or this Act, shall not be reckoned as part of the total debt of the council for the purpose of any limitation on borrowing imposed by any Act of Parliament.

13. The amendments specified in the second column of the Second Schedule to this Act being minor amendments of the Housing, &c. Act, 1923, shall be made in the provisions of that Act specified in the first column of that Schedule. Minor amendments.

14.—(1) The London County Council and the common council of the city of London or any metropolitan borough council may enter into agreements by which the common council or the metropolitan borough council may contribute such amounts as may be agreed, subject to the provisions of this Act, towards the provision of houses by the county council within or without the county to meet any special needs of the common council or any such metropolitan borough council, and, for the purposes of paragraph (e) of subsection (1) of section three of this Act, the amount of any such contribution shall be treated as if it were part of the expenses borne by the county rate. Agreements between London County Council and metropolitan borough councils.

(2) In the case of houses provided by the London County Council within the area of any other local authority or houses the construction of which within such

area is promoted by the London County Council the appropriate normal rent shall be determined by the Council instead of by the local authority of the area.

Expenses of
London
County
Council.

15. Any expenses incurred by the London County Council under this Act and under section two of the Housing, &c. Act, 1923, as amended by this Act, shall be defrayed as expenses for general county purposes.

Application
to Scotland.

16. This Act in its application to Scotland shall have effect subject to the following modifications :—

(1) References to the Minister of Health (except in sections four, five and six) shall be construed as references to the Scottish Board of Health (in this section referred to as the Board) and the reference to section eight of the Housing, Town Planning, &c. Act, 1919, shall be construed as a reference to section six of the Housing, Town Planning, &c. (Scotland) Act, 1919.

9 & 10 Geo.5.
c. 60.

(2) References in this Act to an agricultural parish shall be construed as references to a rural area; and the following provisions shall be substituted for subsections (2) and (3) of section two, namely,—

“(2) For the purposes of this Act, a house shall be deemed to be situated in a rural area if the area at the beginning of the financial year in which the proposal for the provision of the house is approved by the Board, is either—

(a) a landward parish or (in the case of a parish which is partly burghal and partly landward) the landward part of the parish for the purposes of the Local Government (Scotland) Act, 1894, with respect to which the two following conditions are fulfilled :—

57 & 58 Vict.
c. 58.

(i) the value of the agricultural land in the landward parish or the landward part of the parish according to the valuation roll then in force exceeds twenty-five per cent. of the total valuation of all lands and heritages in the landward parish or in the landward part of the parish, as the case may be; and

(ii) the population of the landward parish or the landward part of the parish, as the case may be, according to the last published census report of the Registrar-General for Scotland is less than fifty persons per hundred acres; or

(b) any area within the Highlands and Islands as defined in the Highlands and Islands (Medical Service) Grant Act, 1913, other than a burgh within the meaning of the Public Health (Scotland) Act, 1897. 3 & 4 Geo. 5.
c. 26.
60 & 61 Vict.
c. 38.

Any question as to whether an area is or is not a rural area within the meaning of this subsection shall be determined by the Board, whose decision shall be final.

(3) In the case of any houses situated in a rural area which are provided by a county council or a district board of control under the Lunacy (Scotland) Acts, 1857 to 1913, for persons in their employment or paid by them, this section shall apply in like manner as it applies in the case of houses not situated in a rural area."

- (3) Subsection (3) of section five of the Housing, &c. Act, 1923, shall, in its application to Scotland, have effect as if for the words "the estimated value of the fee simple in possession free from incumbrances of the house" there were substituted the words "the estimated value of the house subject to the feuduty, ground annual, or other burden incident to tenure, but free from incumbrances."

17.—(1) This Act may be cited as the Housing (Financial Provisions) Act, 1924. Short title,
citation and
extent.

(2) The Housing Acts 1890 to 1923 and this Act may be cited together as the Housing Acts, 1890 to 1924.

(3) The Housing (Scotland) Acts, 1890 to 1923, and this Act as applied to Scotland may be cited together as the Housing (Scotland) Acts, 1890 to 1924.

(4) This Act shall not extend to Northern Ireland.

SCHEDULES.

Section 4.

FIRST SCHEDULE.

Years.		Number of Houses.
1925-1926	- -	190,000
1928-1929	- -	255,000
1931-1932	- -	360,000
1934-1935	- -	450,000

Section 13.

SECOND SCHEDULE.

MINOR AMENDMENTS OF HOUSING, &C. ACT, 1923.

Enactments to be
Amended.

Nature of Amendment.

- | | |
|-------------------|---|
| Section 1 (2) | - After the words "fixed bath" there shall be inserted the words "in a bath-room." |
| Section 2 (5) | - The words "house will be completed before" the said first day of October, and that "the other" shall be omitted. |
| Section 5 (1) | - The words "at any time before the first day of October, nineteen hundred and twenty-six" shall be omitted. |
| Section 5 (1) (b) | - After the word "advances" there shall be inserted the words "with interest thereon," and at the end of the paragraph there shall be inserted the words "whether such houses are within or without the area of the local authority." |
| Section 5 (3) | - After the words "the same house" there shall be inserted the following words, "In the case of an advance for the construction of one or more structurally separate and self-contained flats, the estimated value for the purposes of the foregoing limitation shall, as respects any flat, be the estimated value of the flat." |